

**U.S. INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In The Matter Of

**CERTAIN SMART WEARABLE
DEVICES**

Investigation No. 337-TA-1478

**RESPONDENTS OURARING INC. AND OURA HEALTH OY'S
RESPONSIVE CLAIM CONSTRUCTION BRIEF**

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I. INTRODUCTION

Respondents Ouraring, Inc. and Oura Health Oy (collectively, “Oura”) submit this Responsive Claim Construction Brief regarding the construction of claim terms in U.S. Patent Nos. 10,231,675 (“the ’675 Patent”) and 10,642,359 (the “’359 patent”). Samsung’s arguments are unpersuasive as they lack the required support in the intrinsic record, and seek to construe the disputed terms in a manner inconsistent with the teachings of the specification, the claim language, and their plain and ordinary meaning.

To begin, Samsung argues that the term “shortly before and/or immediately after,” as used in the ’675 Patent, is definite. However, Samsung’s own construction undermines any finding of definiteness. Despite the clear language in the claim that requires a second period of time that is (shortly) *before* the first period of time, Samsung attempts to argue that the second period of time can occur *after* the first period of time has started but before it has ended. This imaginative, and wholly subjective, interpretation demonstrates that the term is indefinite.

Next, Samsung fails to address or provide any support for how a skilled artisan would determine the objective boundaries for the claimed “first period of time,” “second period of time,” or “third period of time” in the ’675 Patent. Samsung alleges that the “second period of time” is definite because it is the result of a triggering event associated with the “first period of time,” but this allegation fails to address the boundless nature of the “first period of time.” Similarly, Samsung alleges that the “third period of time” is definite because it is a period of time that immediately follows the second period of time, but this allegation fails to address how the claimed “third period of time” is bounded.

Finally, Samsung attempts to broaden the scope and meaning of the ’359 Patent by eliminating the required “biometric signal” under the guise of a correction of a simple error. This

correction is nothing more than an attempt to redraft the claims to support Samsung's infringement allegations. The Court should reject the invitation to broaden the claim term when correcting Samsung's claim drafting error.

II. PERSON OF ORDINARY SKILL IN THE ART

Whether the Court adopts Samsung's or Oura's proposal for the requisite level of ordinary skill in the art, the arguments presented below and in Oura's opening claim construction brief remain the same. In fact, the parties' POSITA proposals are largely consistent with the only difference being that Samsung proposes a four-year degree in "electrical engineering, mechanical engineering, biomedical engineering, *optical engineering*" and at least two years of experience "studying or developing sensor systems," while Oura proposes a four-year degree in "electrical engineering, mechanical engineering, biomedical engineering, *computer engineering*" and at least two years of experience "studying or developing wearable monitoring devices such as non-invasive biosensors." *Compare* Complainants Br. at 4-5 *with* Respondents Br. at 7. As the scope the '675 Patent and the '359 Patent relate to wearable monitoring devices, Oura's proposal should be adopted. *See* '675 Patent at Abstract; '359 Patent at Abstract.

III. ANALYSIS OF DISPUTED CLAIM TERMS

A. Term No. 1: “acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body”

Claim Term	Complainants' Construction	Respondents' Construction
“acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body” Claim 13 of the '675 Patent	Within this phrase, “second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body” mean: “second period of time which begins: (i) before the first period of time has ended when it is determined that the electronic device is worn, or (ii) immediately after the first period of time has ended when it is determined that the electronic device is worn”	Indefinite

Samsung's attempt to eliminate “shortly” from “shortly before” defies logic and is nothing more than improper attempt to redraft the claim. Moreover, Samsung fails to identify any support in the intrinsic record that supports a finding that the claimed “first period of time” and “second period of time” are definite. Accordingly, the term “acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body,” as recited in Claim 13, is indefinite as a POSITA would not understand the metes and bounds of the term with reasonable certainty.

1. Samsung's Attempt to Redraft the '675 Patent is Based on Illogical Arguments Based on an Unsupported Interpretation of the Specification

Samsung's arguments related to the “shortly before and/or immediately after” claim

language only undermines its position and further demonstrates the lack of foundation for its unsupported proposed construction. Oura does not contend that the phrase “shortly before and/or immediately after” is inherently indefinite. However, the limitation in which the phrases exists, when read as a whole, is indefinite.

To begin, Samsung asserts that the terms of degree are definite because the claims “permit a triggering event for the start of the ‘second period’ to be either: (1) the end of the ‘first period’ (i.e., immediately after’) or (2) a wear detection event that occurs after the first period has started but before it has ended, in which case the two periods overlap (i.e., ‘shortly before’).” Complainants Br. at 7. As an initial matter, Samsung contradicts its own expert when it asserts that the “second period” can include a “a wear detection event.” Dr. Young, Samsung’s expert, opined that “claim 13[] makes clear that ‘first period’ is directed at wear detection, as it recites: ‘first period of time when it is determined that the electronic device is worn on a part of the user’s body.’ During the ‘second period,’ in turn, motion is used to decide whether to activate or inactivate the ‘second sensor.’” Young Decl. at ¶ 31. The ability of Samsung and its expert to offer conflicting descriptions of the “second period of time” results from an absence of reasonable certainty to this claim term.¹

Samsung’s argument further fails because it is contrary to the express language in the claim which requires “a second period time [that is] shortly before and/or immediately after a first period of time.” ’675 Patent at 46:36-38. The claim establishes two distinct, but alternative, periods of time and requires that they occur sequentially and does not allow for an overlap between the two

¹ As discussed *infra* in Section III.A.2, Samsung’s shifting definitions in its preliminary infringement contents, final infringement contentions, and its claim construction submission further evidence the lack of reasonable certain associated with this claim term.

distinct periods (*i.e.*, a second period of time that occurs ***before*** a first period of time **or** a second period of time that occurs ***after*** a first period of time). The word “before” refers to an occurrence that is sooner than a specific time or event (*e.g.*, please turn off the lights before you leave) and the word “after” refers to an occurrence that is later than a specific time or event (*e.g.*, please arrive after 5 PM). *See* Ex. 8 at 31:23-25 (“If you have a time reference, then after means you’re after the time reference . . . [a]nd before means before that time reference.”).

In an attempt to defend its grammatically illogical argument, Samsung points to the specification’s disclosure that allegedly “explains that such overlap is possible, stating that ‘the second period of time may be set to ***include the time point when the first period of time passes.***” Complainants Br. at 8 (quoting ’675 Patent at 21:55-57) (emphasis in original). As noted by Samsung, “another passage explains” (Complainants Br. at 8) that an electronic device “acquire[s] information on the motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before . . . a first period of time selected (or specified) passes from the time when the electronic device is worn on (or close to) a part of the user’s body.” ’675 Patent at 21:1-6. Citations to these passages, however, ignore that Claim 13 does not use the phrase “the time point when the first period of time passes” (or anything similar). However, Claim 15 recites: “a third period of time, which is shorter than the first period of time, immediately after ***the second period of time passes.***” ’675 Patent at 46:60-62 (emphasis added). Had the patentee intended to use the phrase “of time passes” in Claim 13, they would have done so. Thus, Samsung’s argument is nothing more than an attempt to rewrite the claim in an attempt to preserve its validity.

Samsung’s citation to certain figures cannot salvage the claim term, either. Samsung points to Figure 6 to provide background on the operation and to Figure 5B and its related disclosure to argue that “precise guidance” exists to illustrate that “the ‘second’ period begins ‘immediately

after' the 'first' period ends." Complainants Br. at 3 and 7. But when considering the disclosures associated with Figures 6 and 5B, it becomes apparent that Samsung's reliance on Figure 5B is premised on a failure to understand Claim 13 and the '675 Patent as a whole.

Figure 6 of the '675 Patent provides a description related to turning on (*i.e.*, activating) the second sensor when it is determined that the user is wearing the electronic device. *See* Ex. 8 at 21:24-22:11. For example, in describing the "biometric information measurement operation of an electronic device," the '675 Patent explains that the first step is determining the state (*e.g.*, wearing state, proximity state, in-use state, or holding state) of the electronic device based on a first sensor (*i.e.*, a motion sensor). '675 Patent at 23:25-41. Once it is determined that the electronic device is in a "wearing state" (*i.e.*, being worn on a part of the user's body), the electronic device operates a second sensor (*i.e.*, a biometric sensor) to measure biometric information. *Id.* at 23:53-67; *see* Ex. 8 at 34:23-35:24 (acknowledging that Claim 13 requires "using the first sensor to measure the motion of the electronic device while the second sensor simultaneously detects biometric information"). It does not discuss another period of time, *i.e.*, the second period of time, that is required to decide to operate the second sensor. *See* Young Decl. at ¶ 31 (testifying that the second period of time recited in Claim 13 is a time period to determine whether to activate the second sensor). This process, is illustrated below in Figure 6:

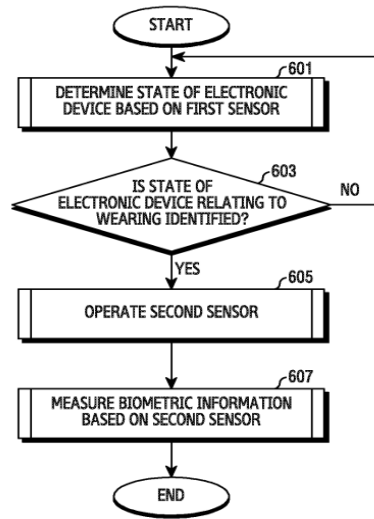


FIG.6

'675 Patent at FIG. 6.

Samsung's reliance on Figure 5B to define the requirements of the claim term at issue is misplaced because the description of Figure 5B shows that the electronic device is already attempting to obtain biometric information, which requires that the second sensor is already activate. *See* Ex. 8 at 27:2-7 (acknowledging that the “activating or turning on the second sensor comes after the first step of determining whether the electronic device is worn on a part of the user’s body”), 38:10-13 (“Figure 5B is a view illustrating an operation of measuring biometric information by an electronic device”). The '675 Patent explains that Figure 5B illustrates “an operation of measuring biometric information by an electronic device.” '675 Patent at 19:30-31; *see also* Rosing Decl. at ¶ 50.

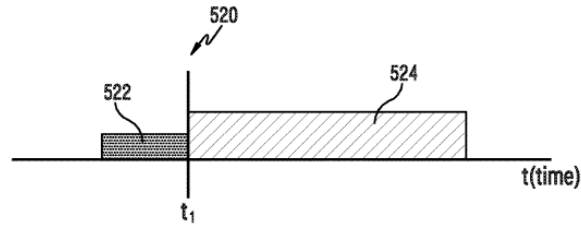


FIG.5B

'675 Patent at FIG. 5B.

Contrary to Samsung's assertions, Figure 5B specifically relates to the timing requirements for measuring motion using the first sensor (*e.g.*, a motion sensor) while the second sensor (*e.g.*, a biometric sensor) detects biometric information and not the timing requirements for determining whether an electronic device is worn on a part of a user's body and a separate period to determine whether to activate the second sensor. *See* Complainants Br. at 7-8; Ex. 8 at 34:23-35:24 (acknowledging that Claim 13 requires "using the first sensor to measure the motion of the electronic device while the second sensor simultaneously detects biometric information"). For example, the '675 Patent explains:

FIG. 5B is a view illustrating an operation of measuring **biometric information** by an electronic device (*e.g.*, the electronic device 101, the processor 120 of the electronic device 101, the electronic device 400, or the processor 500), according to various embodiments of the present disclosure.

Referring to FIG. 5B, the electronic device . . . may attempt to measure **biometric information** according to a period (*e.g.*, about 1 minute) having a selected (or specified) period of time. . . . [T]he electronic device . . . may operate a first timer that represents a selected (or specified) period of time in order to determine when to attempt to measure **biometric information**. For example, the electronic device . . . may attempt to measure **biometric information** at every 1 minute by operating the first timer.

. . . [T]he electronic device . . . may measure the motion of the electronic device in at least one time interval 522 before the operation of the first timer ends (520) (e.g., for about 10 seconds before the operation of the first timer ends), and when the operation of the first timer ends, the electronic device . . . may determine whether at least a part of the measured motion satisfies a selected (or specified) reference. **For example, the electronic device . . . may measure the average of the motion that is acquired in at least one time interval 522 before the first timer ends, and may determine whether the measured average of the motion is less than, or equal to, a selected (or specified) threshold value.**

. . .

. . . [W]hen the measured motion of the electronic device does not satisfy the selected (or specified) reference, the electronic device . . . may determine whether the motion of the electronic device is changed to satisfy the selected (or specified) reference for the time 524 (e.g., about 30 seconds) during which a second timer operates. . . . [T]he electronic device . . . may not measure biometric information when the previously measured motion (e.g., the average of the motion) is maintained at a threshold value or more. . . .

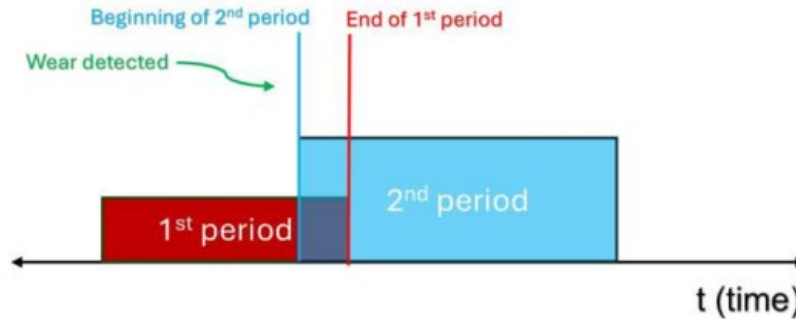
'675 Patent at 19:26-20:8 (emphasis added). In other words, the time intervals disclosed with relation to Figure 5B relate to the measurement of motion to determine whether a threshold motion has been exceeded during the detection of biometric information. Such disclosure is relevant to the claim language:

during detecting the biometric information, acquiring second information on a motion of the electronic device using at least the part of the at least one first sensor; and

in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor.

'675 Patent at 46:46-52. Thus, Samsung's attempts to rely on Figure 5B to demonstrate "the boundary between the first and second time periods" is unsupported and wrong. Complainants Br. at 8.

Finally, even *assuming arguendo* that Samsung's reliance on Figure 5B is proper—which it is not—Samsung attempts to take its argument a step further by relying on "a modified version of Figure 5B" by its expert, Dr. Young:



Complainants Br. at 8-9 (citing to Young Decl. ¶ 34). Samsung does so to purportedly illustrate that “the [claimed electronic] device can immediately enter the ‘second’ period of acquiring motion information (used in determining whether to activate a ‘second sensor’), without waiting for the ‘first’ period to end, and the ‘second’ period continues after the ‘first’ period ends.” *Id.* Samsung points to several sections of the specification in support of its untethered “modification” of Figure 5B. *Id.* at 8 (citing ’675 Patent at 21:3-5, 21:52-57, 42:18-23). However, none of these citations discuss or are tied to Figure 5B, or offer any reasonable basis to support modifying Figure 5B. The Court should reject Samsung’s transparent sleight of hand to incorporate extrinsic evidence, conjured by its expert, as intrinsic evidence to support its arguments.

In short, the term “acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body” is indefinite. *See* Rosing Decl. at ¶ 51. Nothing in the specification provides objective boundaries for determining the first period of time or the second period of time. Moreover, Samsung’s proposed construction ignores the plain language in the claim and is based on a misconstrued reading of the specification.

2. *The “First Time Period” and “Second Time Period” Terms are Indefinite*

Samsung’s inconsistent positions regarding the “first period of time” demonstrates the

subjective and boundless nature of the term. For example, Samsung has alleged that the “first period of time” is:

- “[A] period of time when the electronic ring is not being worn.” Respondents Br. at Ex. 2 (Samsung’s March 16, 2026 Infringement Contentions) at 8.
- “[W]hen the device uses the ‘first sensor’ to detect whether it is being worn on the user’s body.” Complainants Br. at 6.

Rather than maintain its initial allegation that the “first period of time” is *any* period of time when the electronic ring is not being worn, Samsung now seeks to identify the first period of time as *any* period of time when an electronic device is determining whether it is being worn. This shift in strategy, however, illustrates that the claimed “first period of time” lacks the required objective boundaries. *See Nautilus, Inc. v. Biosig Instruments, Inc.*, 572 U.S. 898, 911 & n. 8 (2014) (indicating that there is an indefiniteness problem if the claim language “might mean several different things and ‘no informed and confident choice is available among the contending definitions’”).

Samsung’s inconsistent positions regarding the “second period of time” further demonstrates the subjective and boundless nature of the term. For example, Samsung has alleged that the “second period of time” is:

- The period of time immediately before the third period of time, which is “the period of time ending after the user wakes up.” Respondents Br. at Ex. 3 (Samsung’s March 16, 2026 Infringement Contentions) at 8.
- “[W]hen the same ‘first sensor’ is used to acquire motion information for the electronic device, which in turn helps determine whether to activate a ‘second sensor.’” Complainants Br. at 6.
- “[T]he period of time shortly before or immediately after it is determined that the electronic device is worn on a part of the user’s body.” Respondents Br. at Ex. 2 (Samsung’s March 16, 2026 Infringement Contentions) at 8.

At bottom, it is entirely unclear what Samsung alleges is the “second period of time.” Yet, even

assuming the allegation can be deciphered, no objective guidelines for determining the length of the claimed second period of time exists.² *See* Rosing Decl. at ¶ 49.

Moreover, Samsung argues that the '675 Patent “fully defines the bounds of the second period” because “the specification provides numeric examples that would enable a POSITA to determine the scope of the claims.” Complainants Br. at 9. In support of this assertion, Samsung points to the specifications disclosure that an “electronic device ‘may attempt to measure biometric information according to a period (e.g., about a minute).’” *Id.* at 9-10 (quoting '675 Patent at 19:35-37). As explained in Section III.A.1, however, Samsung’s reliance on this portion of the specification is misplaced. This portion of the specification explains that the device is attempting to obtain biometric information-something that can only occur if the biological sensor (*i.e.*, the second sensor) is activated. But Claim 13 requires “activating at least one second sensor based on at least a part of the first information on the motion of the electronic device.” '675 Patent at 46:41-43. Periods of time related to the measurement of biometric information, however, are not the same as a “second period of time” related to the “motion of the electronic device.” *See* Complainants Br. at 11 (“In all recited ‘period,’ the same ‘first sensor’ is measuring motion.”). Thus, Samsung has failed to identify any objective way of determining the length of the claimed second period of time.

Accordingly, as a POSITA would not understand the metes and bounds of this term with reasonable certainty, the Court should find it indefinite. *See* Rosing Decl. at ¶ 51.

² Samsung asserts that “the bounds of the start of the ‘second’ period are (i) after the ‘first period has started but before it has ended when it is determined that a user’s device is worn, or (ii) ‘immediately after’ the end of that ‘first’ period when it is determined that the electronic device is worn.” Complainants Br. at 5. However, this argument, still fails to provide any objective guidelines for determine when the second period of time ends.

B. Term No. 2: “acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for a third period of time, which is shorter than the first period of time, immediately after the second period of time passes; and activating the at least one second sensor based on at least a part of the additional information”

Claim Term	Complainants’ Construction	Respondents’ Construction
“acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for a third period of time, which is shorter than the first period of time, immediately after the second period of time passes; and activating the at least one second sensor based on at least a part of the additional information” Claim 15 of the ’675 Patent	Within this phrase, “third period of time” means: “period of time that immediately follows the second period of time and during which additional information regarding the motion of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to activate the at least one second sensor”	Indefinite

Samsung fails to identify any intrinsic evidence that suggests the objective boundaries of the claimed “third period of time.”

To begin, similar to Term No. 1 above, Samsung’s inconsistent litigation positions regarding the “third period of time” highlight the subjective and boundless nature of the term. For example, Samsung has alleged that the “third period of time” is:

- The “period of time beginning immediately after the second period of time (e.g., the period of time ending after the user wakes up).” Respondents Br. at Ex. 3 (Samsung’s March 16, 2026 Infringement Contentions) at 36.
- The “period of time that immediately follows the second period of time and during which additional information regarding the motion of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to activate the at least one second sensor.” Complainants Br. at 10.
- The period of time that “the devices uses further information about the measured motion to decide whether to reactive the ‘second sensor,’ after it was inactivated in Claim 13’s last step.” Complainants Br. at 11.

Samsung's litigation positions do not provide clarity on what it alleges is the "third period of time." Moreover, these inconsistent positions illustrate that the claimed "third period of time" lacks the required objective boundaries. *See Nautilus, Inc.*, 572 U.S. at 911 & n. 8.

Next, as explained in Section III.A.1, the '675 Patent fails to provide objective boundaries for the claimed "first period of time" and therefore fails to provide the necessary disclosure for determining the required temporal relationship between the "first period of time" and the "third period of time." Samsung's arguments do nothing to demonstrate how a POSITA would determine the length of the "third period of time." Complainants Br. at 10-13; *see also* Rosing Decl. at ¶ 54.

Finally, Samsung argues that "[t]he relationship between the 'second' and 'third' periods, as recited in Claims 13 and 15, is confirmed in the specification." Complainants Br. at 12. In support of this argument, Samsung asserts "that in **both** back-to-back time periods 522 and 524, the device measures motion and 'may operate at least one sensor (e.g., biometric sensor) for measuring biometric information when the measured motion of the electronic device satisfies a selected (or specified) reference.'" ³ *Id.* at 12 (quoting '675 Patent at 19:61-64). However, as explained in Section III.A.1, "time interval 522" is the time during which the electronic device "measure[s] the average of the motion" (*i.e.*, the motion related to the claimed threshold motion) and "time 524" is the time during which the electronic devices "determine(s) whether the motion of the electronic device is changed to satisfy the selected (or specified) reference." '675 Patent at 19:54-56, 19:67-20:3. Thus, time periods 522 and 524 are not related to the claimed second and

³ Samsung's assertion that 522 and 524 of Figure 5B represents the "second period of time" and "third period of time" supports Oura's argument that Figure 5B is unrelated to defining the "first period of time" and the "second period of time" required by the language of claim. It shows the flaw in Samsung's "modified version of Figure 5B" in which it alleges that 522 represents the first period of time and 524 represents the second period of times.

third periods of time as alleged by Samsung.

In sum, a POSITA would not understand the objective boundaries for defining the claimed “third period of time” with reasonable certainty. *See* Rosing Decl. at ¶ 57. Thus, this term is indefinite.

C. Term No. 3: “biometric signal”

Claim Term	Complainants’ Construction	Respondents’ Construction
“biometric signal” Claim 14 of the ’359 Patent	Correcting “the biometric signal” to be “the biological signal” and applying the plain and ordinary meaning (<i>i.e.</i> , a signal that is associated with biological information of the user).	Correcting “the biometric signal” to be “a biometric signal” and applying the plain and ordinary meaning (<i>i.e.</i> , a signal relating to the identification of an individual based on physical characteristics, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight).

There is no dispute that the ’359 Patent includes a typographical error. However, there is a dispute as to how the error should be corrected. Samsung’s correction broadens the scope of the claims by changing the term “the biometric signal” to be “the biological signal,” which corrects the antecedent basis but also eliminates the need for a biometric signal. Oura’s correction, on the other hand, keeps the scope of the claims the same while fixing the antecedent basis by changing the term “the biometric signal” to be “a biometric signal.” Contrary to Samsung’s allegation that Oura’s proposed correction is “untethered to the intrinsic record,” Oura’s correction maintains the integrity of the claim as written while fixing the clear error. *See* Complainants Br. at 13.

1. *Samsung Ignores that Claim 14 Recites a “Biometric Signal”*

Samsung argues that its construction is “Firmly Supported By All Of The Intrinsic Evidence,” but ignores that the claim itself recites a “biometric signal.” Complainants Br. at 13. “While biometric information is not expressly disclosed in the specification, a POSITA would

understand the need . . . to use biometric information to verify the identity of a user prior to allowing control and operation of an external device (e.g., mobile phones, heating thermostats, and entry to vehicles).” Rosing Decl. at ¶ 61; *see also id.* at ¶¶ 36-37; Ex. 8 at 27:21-30:14.

Samsung asserts that “[b]ecause the ‘biometric signal’ is introduced using the article ‘the,’ it is evident that ‘biometric signal’ refers back to one of these prior signals.” Complainants Br. at 14. In support of this argument, Samsung cites to *Tuna Processor, Inc. v. Haw. Int’l Seafood, Inc.*, which held that the definite article “the” in “the *smoke* cooled” did not introduce a new or different smoke but rather referred back to an element already established in the claim—the filtered *smoke* from the prior steps. 327 F. App’x 204, 210 (Fed. Cir. 2009) (emphasis added); *see* Complainants Br. at 14. Unlike *Tuna Processor*, this case includes a definite article “the” that introduces a new signal and does not refer back to any previous signal.

Samsung further argues that “[t]he correction to ‘biological signal’. . . is also logically supported by the function of the claimed signals.” Complainants Br. at 14. This argument ignores that the purpose of claims is to define the boundaries of a claimed invention. *See Bicon, Inc. v. Straumann Co.*, 441 F.3d 945, 950 (Fed. Cir. 2006). Moreover, every aspect of a claim does not need to be “exemplified in the specification,” but rather “reasonable detail must be provided in order to enable members of the public to understand and carry out the invention.” *Genentech, Inc. v. Novo Nordisk A/S*, 108 F.3d 1361, 1366 (Fed. Cir. 1997). Here, “a POSITA would . . . understand how to configured the claimed controller [in the ’359 Patent] to both ‘obtain a biological signal of the object using the biological sensor’ and ‘determine, as a valid signal, at least a portion of [a] biometric signal that is determined to correspond to the determined select period.’” Rosing Decl. at ¶ 61. Thus, changing the claim beyond correcting the antecedent basis is improper and unnecessary.

2. *Oura's Construction is Consistent with a POSITA's Understanding*

“It is a bedrock principle of patent law that the claims of a patent define the invention to which the patentee is entitled the right to exclude,” thus the “claim construction analysis must begin and remain centered on the claim language itself, for that is the language the patentee has chosen to ‘particularly point[] out and distinctly claim[] the subject matter which the patentee regards as his invention.’” *Innova/Pure Water, Inc. v. Safari Water Filtration Sys., Inc.*, 381 F.3d 1111, 1115-16 (Fed. Cir. 2004) (citations omitted). To the extent the ordinary meaning of a claim is not apparent, then a court may look to “the remainder of the specification, the prosecution history, and extrinsic evidence concerning relevant scientific principles, the meaning of technical terms, and the state of the art.” *Id.*

Samsung first argues that “Oura proposes a construction wholly unrelated to, and unsupported by, the intrinsic record,” Complainants Br. at 17, but conveniently ignores that the Claim 14 uses the term “biometric signal.” ’359 Patent at 15:24-26. Moreover, the ’359 Patent identifies specific examples of external devices that “[a] POSITA would understand . . . , at least in some instances, . . . use biometric information to verify the identity of a user prior to allowing control and operation of an external device.” Rosing Decl. at ¶ 37. Notably, Samsung provides no support for its apparent position that the words of the claims must be used in the specification, and ignores that extrinsic evidence may be relied upon if the meaning of a claim term is not clear from the intrinsic evidence. *See* Complainants Br. at 17-18; *Grace Instrument Indus., LLC v. Chandler Instruments Co., LLC*, 57 F.4th 1001, 1008 (Fed. Cir. 2023) (“A court . . . may rely on dictionary definitions, ‘so long as the dictionary definition does not contradict any definition found in or ascertained by a reading of the patent documents.’ . . . If the meaning of a claim term is clear from the intrinsic evidence, there is no reason to resort to extrinsic evidence.” (citations omitted)).

Samsung next argues that Oura relies “on cherry-picked extrinsic evidence” and that

Oura's construction should be rejected "because there are other, contrary extrinsic definitions of 'biometric signal' that are consistent with the '359 Patent and Samsung's construction." Complainants Br. at 18. Yet, Samsung fails to identify any dictionaries or learned treatises that support its argument. *See id.*; Ex. 8 at 19:24-20:19 (Dr. Young acknowledging that, besides the dictionaries identified by Oura, he did not consider any treatises or other dictionaries). Moreover, Samsung's own expert, Dr. Young, agrees that a biometric signal is a signal that relates to "character and characteristics of biological information," which includes information like "a retinal, voice recognition, finger length, things like that." Ex. 8 at 40:12-25.

Rather, Samsung points to the '675 Patent's use of the term "biometric information." *Id.* This argument, however, ignores that the '675 Patent is not part of the same patent family as the '359 Patent.⁴ *See* Ex. 8 at 27:8-13. Moreover, given the clear differences between '675 Patent's description of biometric information and the dictionary definitions relied on by Dr. Rosing, it appears that the patentee in the '675 Patent was acting as their own lexicographer. *Compare* Rosing Decl. at ¶ 60 (citing Exs. 2-6 (defining biometric(s) as a measurement for identifying an individual based on physical characteristics, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight) *with* '675 Patent at 1:32-35 ("For example, the biometric information may include blood pressure, a heart rate, an electrocardiogram, skin moisture, saturation of peripheral oxygen, and the like.")).

Thus, Oura's construction is consistent with a POSITA's understanding of the term "biometric signal" as used in the '359 Patent and Samsung has failed to provide any intrinsic or

⁴ The '675 Patent claims priority to a foreign priority application filed on August 12, 2015, while the '359 Patent claims priority to a foreign priority application filed two years earlier on August 20, 2013.

extrinsic evidence that supports a construction contrary to that proposed by Oura.

3. *Samsung's Construction Goes Beyond the Specification's Definition of the Term Biological Signal*

To the extent the Court decides to adopt the correction offered by Samsung, the Court should reject Samsung's proposed construction broader than the support it relies upon in the specification when defining the term biological signal to be "a signal that is associated with [any] biological information of the user." In its brief, Samsung repeatedly points to the specification to explain that a biological signal is the relaxation or contraction of muscles. Complainant Br. at 4, 15, 16, and 18. Samsung's statements in its opening brief are consistent with the '359 Patent which describes the biological signal as being "a biosignal associated with biological information such as, for example, muscle contraction and muscle relaxation occurring in the [user]." '359 Patent at 5:14-17; *see also* Ex. 8 at 29:24-30:14. Thus, the term "biological signal," as explained by Dr. Rosing, is "a signal that relates to 'muscle contraction or muscle relaxation of a body party, such as a wrist or a heart.'" Rosing Decl. at ¶ 60 (quoting '359 Patent at 3:56-58). To the extent that this Court accepts Samsung's invitation to correct the claim to recite "the biological signal" because the specification dictates that correction, then the Court should define that term consistent with the intrinsic evidence.

IV. CONCLUSION

For the reasons above, the ALJ should adopt Oura's proposed constructions.

Dated: May 18, 2026

Respectfully submitted,

/s/ Jasjit S. Vidwan

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Exhibit 8

Page 1

UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.

In the Matter of)
) Investigation No.
CERTAIN WEARABLE DEVICES) 337-TA-1478
)

Videotaped Deposition of DR. DARRIN YOUNG
San Francisco, California
Friday, May 15, 2026

Reported Stenographically by
Michael P. Hensley, RDR, CSR No. 14114

1 UNITED STATES INTERNATIONAL TRADE COMMISSION
2 WASHINGTON, D.C.

3 In the Matter of)
) Investigation No.
4 CERTAIN WEARABLE DEVICES) 337-TA-1478
)

5
6
7 Videotaped Deposition of DR. DARRIN YOUNG,
8 commencing at the hour of 9:05 AM and concluding at
9 the hour of 10:23 AM on Friday, May 15, 2026, at the
10 location of Two Embarcadero Center, 28th Floor,
11 San Francisco, California 94111, before Michael
12 Hensley, Registered Diplomate Reporter, Certified
13 Shorthand Reporter No. 14114, in and for the State
14 of California.

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2

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4 WITNESS: DR. DARRIN YOUNG Page

5 BY ATTORNEY NASH 6

6

7 EXHIBITS

8 No. Description Page

9 1 Curriculum Vitae of Darrin J. Young 17

10 2 Bates Number 23

SAMS382-0003655-0003703: United

11 States Patent 10,231,675

12 3 Bates Number 39

SAMS382-0003704-0003719: United

13 States Patent 10,642,359

14 4 Declaration of Dr. Darrin Young 41

Regarding Claim Construction

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1 Via Videoconference
2 Friday, May 15, 2026
3 9:05 AM - 10:23 AM

4 -o0o-

5 THE VIDEOGRAPHER: Good morning. This is
6 Media Number 1 of the video deposition Dr. Darrin
7 Young PhD taken by the respondents in the matter of
8 Certain Wearable Devices, United States
9 International Trade Commission, Washington, D.C.,
10 Investigation Number 337-TA-1478.

11 This deposition is being held at O'Melveny
12 & Meyers, 2 Embarcadero Center, 28th floor,
13 San Francisco, California 94111.

14 Today is May 15th, 2026. The time on the
15 video screen is 9:06 AM Pacific time. My name is
16 Kevin McMahon. I am the legal videographer from
17 Digital Evidence Group. Court reporter is Mike
18 Hensley in association with Digital Evidence Group.

19 Will counsel please introduce themselves
20 for the record.

21 ATTORNEY NASH: Brady Nash from Mayer
22 Brown LLP on behalf of respondents Ouraring Inc. and
23 Oura Health OI.

24 ATTORNEY TRAC: Bill Trac of O'Melveny &
25 Myers on behalf of complainants.

1 declaration.

2 Do you agree that this is a complete
3 overview of your education and employment history?

4 A. That's correct.

5 Q. Okay.

6 Dr. Young, in your declaration, you
7 provided opinions about U.S. Patent Number
8 10,231,675; correct?

9 A. That's correct.

10 Q. If I refer to U.S. Patent Number
11 10,231,675 as "the '675 patent," you understand what
12 I'm talking about; right?

13 A. Yes, I do.

14 Q. And then in your declaration you also
15 provided opinions about U.S. Patent Number
16 10,642,359; correct?

17 A. I think that's correct, but I remember the
18 last three digit as the '359 patent. You know, the
19 early digits, I assume you are right.

20 Q. Yeah.

21 So if I refer to U.S. Patent Number
22 10,642,359 as "the '359 patent," you understand what
23 I'm talking about; right?

24 A. That's correct.

25 Q. In preparation of your declaration, did

1 you consider any treatises?

2 A. Yes, I do.

3 Q. What treatises did you consider?

4 A. Just -- just in general. I -- when I
5 read -- when I read a -- the specification, when I
6 read the claim, and I consider the meaning of those
7 words.

8 Q. So in preparation of your declaration, did
9 you look up any information in a treatise?

10 A. What do you mean by "look up" any
11 definition?

12 Q. So my question is, in preparation of your
13 declaration, did you consider any specific
14 information in a treatise?

15 A. I look at the language, the words in the
16 patent -- right? -- by its customary and ordinary
17 meaning through the lens of an ordinary skill in the
18 art, and that's how I review the patent and analyze
19 the patent.

20 Q. So, besides the patent, did you consider
21 any extrinsic evidence in preparation of your
22 declaration?

23 A. Not that I remember of.

24 Q. So you would agree, then, that you did not
25 consider a treatise in preparation of your

1 declaration?

2 A. That's fair to say.

3 Q. You would also agree that you did not
4 consider any technical dictionaries in preparation
5 of your declaration?

6 A. Let me think.

7 I did review Oura's proposed claim
8 construction; and if I remember correctly, Oura
9 used, you know, dictionary for certain meaning of
10 the words.

11 So I did review that, but I didn't open up
12 a dictionary to check those words; right? But I
13 assume what Oura presented based on their finding in
14 dictionary is -- is the -- is the correct
15 information they put in their report.

16 Q. Besides the dictionary definitions
17 identified by Oura and Dr. Rosing, did you review
18 any other dictionary definitions?

19 A. Not that I remember.

20 Q. If you don't understand the meaning of a
21 word, how do you go about gaining an understanding
22 of what that word means?

23 ATTORNEY TRAC: Objection. Vague.

24 THE WITNESS: That's -- I agree. That's a
25 vague question.

1 But with respect to the context of the
2 patent that I review or the documents that I review
3 with respect to this proceeding, I understand the
4 meaning of the words used in those documents that I
5 reviewed.

6 BY ATTORNEY NASH:

7 Q. So if an expert in your field does not
8 understand a technical term, how would they gain an
9 understanding of what that term means?

10 A. If that person possess certain expertise
11 in the field, I would expect that individual
12 understand the words used with respect to the field.

13 Q. Do you agree that the claims in dispute in
14 the '675 patent relate to determining whether an
15 electronic device is being worn by a user?

16 A. I came across, you know, language or
17 teaching of the '67 patent, you know, center around
18 what you just described to determine whether device
19 is worn by the individual or worn by a user.

20 Q. And by "67 patent," you mean the '675
21 patent; correct?

22 A. '675 patent, yeah. That's what I meant.
23 Sorry if I said it wrong.

24 Q. Do you agree that the claims in dispute in
25 the '675 patent relate to turning on a biometric

1 sensor?

2 A. If I remember correctly --

3 But, you know, again, this is based on
4 my -- based on my recollection. I don't remember
5 word by word.

6 -- it talks about turning on a -- a second
7 sensor. And that second sensor in the specification
8 of the '675 patent, I recall came across terms such
9 as "biometric sensor" or "biological sensor."

10 But, again, this is based off -- based on
11 my recollection, you know.

12 Q. And do you agree that the second sensor
13 that you've just referenced in your previous answer,
14 it could be a biometric sensor?

15 ATTORNEY TRAC: Objection. Vague.

16 THE WITNESS: I have not thought about
17 that, but I can tell you my understanding is that
18 second sensor is used to monitor biological
19 informations.

20 I believe these are the words used in the
21 claim. These are the words used in the
22 specification.

23 BY ATTORNEY NASH:

24 Q. Do you agree that the claims in dispute in
25 the '675 patent relate to turning off a second

1 sensor?

2 A. I think one of the limitation in -- if I
3 remember correctly, it's claim 13; right? -- is
4 related to turning off the second sensor during the
5 second period of time if the detect of motion is --
6 is high or above a threshold.

7 Q. Do you agree that the claims in dispute in
8 the '675 patent relate to turning on a second sensor
9 after it is determined that the electronic device is
10 being worn by a user?

11 A. I think what you said is only part of
12 the -- the teaching; right? If I remember
13 correctly, the patent teaches that the system will
14 need to determine whether it is worn by the user or
15 not; right? If it is worn by the user, then it
16 monitors the motion of that wearable device.

17 If the motion of that wearable device
18 is -- is below certain threshold or meets a -- like,
19 a specified reference per se, then it turns on the
20 second sensor.

21 ATTORNEY NASH: So I'd like to have marked
22 as Exhibit 2 a document that is Bates range
23 SAMS382-0003655 to SAMS382-0003703.

24 (Exhibit 2 was marked for identification.)

25 BY ATTORNEY NASH:

1 Q. Dr. Young, do you recognize this document?

2 A. Yeah. This is the '675 patent.

3 Q. And we were just discussing claim 13;
4 correct?

5 A. I believe I said that, yes.

6 Q. So if you can turn to claim 13. This is
7 on column 46, and I'm looking at lines 31 to 53.

8 And you can review all of claim 13, but
9 I'm specifically looking at two claim elements, and
10 the first is:

11 [As Read] Activating at least one
12 second sensor based on at least a part of
13 the first information on the motion of the
14 electronic device.

15 And the second element that I'm looking at
16 is:

17 [As Read] During detecting the
18 biometric information, acquiring second
19 information on a motion of the electronic
20 device using at least the part of the at
21 least one first sensor.

22 Do you see that?

23 A. I see that.

24 Q. So do you agree, Dr. Young, that after it
25 is determined that the electronic device is worn on

1 at least one first sensor of the
2 electronic device.

3 So that step -- right? -- is to determine
4 whether it is -- it is worn by the user or not.

5 Okay?

6 Then the next step -- right? -- states as:

7 [As Read] Acquiring first information
8 on a motion of the electronic device using
9 at least a part of the at least one first
10 sensor for a second period of time shortly
11 before and/or immediately after a first
12 period of time when it is determined that
13 the electronic device is worn on a part of
14 the user's body.

15 So that step is important; right? That
16 step is monitoring the motion. Okay. Then gets to
17 your question which is the third step:

18 [As Read] Activating at least one
19 second sensor based on at least a part of
20 the first information on the motion of the
21 electronic device.

22 So whether or not you activate a sensor is
23 based on the first information which is the motion
24 that is being detected by the wearable device in
25 second step.

1 BY ATTORNEY NASH:

2 Q. But you would agree the third step of
3 activating or turning on the second sensor comes
4 after the first step of determining whether the
5 electronic device is worn on a part of the user's
6 body; correct?

7 A. That's my understanding.

8 Q. Do you agree that the '359 patent and the
9 '675 patent are not part of the same patent family?

10 A. I think the attorney or the counsel
11 mentioned that to me, you know, before. I take that
12 as -- as the facts, they are not from the same
13 family.

14 ATTORNEY TRAC: And I would caution the
15 witness to be careful with attorney communications.

16 BY ATTORNEY NASH:

17 Q. Do you agree that the '359 patent relates
18 to using a wearable device to control an external
19 device?

20 A. That's part of the teaching.

21 Q. In the context of the '359 patent, what
22 does it mean to control an external device?

23 A. If I remember correctly, the '359 patent
24 talks about using biological signals -- for example,
25 the muscle relaxation or contraction signals; for

1 example, the EMG signal -- to control electronic
2 devices or external electronic devices.

3 And if I remember correctly, it talk about
4 maybe remote control of TV, remote control of DVD as
5 examples.

6 But there could be, you know, many other
7 controlling function -- right? -- that can be --
8 that can be performed by using the biological signal
9 from the user under his or her intention.

10 (Court reporter clarification.)

11 BY ATTORNEY NASH:

12 Q. And when you're referring to -- okay.
13 Strike that.

14 What do you mean by "the user under his or
15 her intention"?

16 A. Yeah.

17 The patent talks about, you know, if you
18 monitor, for example, EMG signals as, you know, one
19 of the biological signals, sometimes you may have
20 other motion moving your arms or body, for example.

21 Those can -- those can possibly corrupt
22 the biological signal, or those may generate its own
23 biological signal. That is not the intention of the
24 user, for example, moving the arm to relax or
25 contract the muscle as a intention or as intended

1 signal to control an external device.

2 Q. And what are examples of, I guess, those
3 intentional motions or signals that you're
4 describing?

5 A. I think the patent gives, you know, a few
6 examples; but one of them is a EMG signal, muscle
7 signal.

8 Q. And how does a user create an EMG signal?

9 ATTORNEY TRAC: Objection. Vague.

10 THE WITNESS: That is part of the human
11 biological or physiological process; right? When
12 we -- when we move our body or when I move my wrist,
13 if you put the electrodes, you know, over a certain
14 area, you -- you will pick up electrical potentials.
15 We call it voltage signals.

16 That is -- that is generated because you
17 moved certain parts of your body. Or even this
18 finger; right? If I move like this, there is a
19 voltage signal coming up because I moved my finger.

20 BY ATTORNEY NASH:

21 Q. And do you agree, then, that different
22 motions will create different signals?

23 A. That's correct.

24 Q. Do you agree that the biological signal in
25 the '359 patent is a signal that relates to muscle

1 contraction or muscle relaxation of a body part such
2 as a wrist or a heart?

3 ATTORNEY TRAC: Objection. Vague. Legal
4 conclusion.

5 THE WITNESS: That's just one of the
6 signals -- right? -- as an example taught by the
7 specification of the patent.

8 BY ATTORNEY NASH:

9 Q. Are there other examples taught by the
10 specification of the patent?

11 A. I would have to review that again in order
12 to give you, you know, a firm answer. It may
13 discuss other signals, but I just don't remember off
14 my head.

15 Q. Do you agree that the word "after" refers
16 to an occurrence that is later than a specific time
17 or event?

18 ATTORNEY TRAC: Objection. Vague.

19 THE WITNESS: It is vague. You know, I
20 have to look at the specific context -- right? -- in
21 order for me to -- to respond your question which
22 focus on the time event.

23 You know, "after" can be you stand after
24 me; right? It's -- it's a position-based after;
25 right? So I just need to know more about what are

1 you talking about.

2 BY ATTORNEY NASH:

3 Q. What is your understanding of the meaning
4 of the word "after" when used in the context of
5 time?

6 ATTORNEY TRAC: Objection. Vague.

7 THE WITNESS: It means after.

8 BY ATTORNEY NASH:

9 Q. Do you agree that the word "before" refers
10 to an occurrence that is sooner than a specific time
11 or event?

12 ATTORNEY TRAC: Objection. Vague.

13 THE WITNESS: I mean, when you talk about
14 time, when you say "before," that means it's a
15 before some time; right?

16 BY ATTORNEY NASH:

17 Q. And then what is your understanding of the
18 differences between the words "before" and "after"?

19 ATTORNEY TRAC: Objection. Vague.

20 THE WITNESS: I think I kind of answered
21 that question when you asked me after and before on
22 the separate basis; right?

23 If you have a time reference, then "after"
24 means you're after the time reference; right? And
25 "before" means before that time reference.

1 BY ATTORNEY NASH:

2 Q. Okay.

3 Dr. Young, when was the last time you read
4 the entire '675 patent?

5 A. It's either on Monday or Tuesday this past
6 week or this current week.

7 Q. Have you reviewed the prosecution history
8 for the '675 patent?

9 A. I skimmed through it during the process of
10 preparing my declaration.

11 Q. Correct me. How much time did you spend
12 reviewing the prosecution history?

13 A. How much time?

14 Q. Mm-hmm.

15 A. It's a -- it's a thick document. I don't
16 recall the exact, you know, minutes per se that I
17 reviewed the prosecution -- the prosecution history
18 for that patent.

19 Q. Less than 30 minutes?

20 A. I don't remember the exact time.

21 Q. So let's take a look at column 16, lines
22 19 to 21 of the '675 patent.

23 So, again, that's lines 19 to 21 in column
24 16. And I'm looking at:

25 [As Read] A biometric sensor (e.g., a

1 sensor, a blood pressure sensor, or a body
2 temperature sensor for measuring a biometric signal.

3 BY ATTORNEY NASH:

4 Q. So I'd like to now turn back to claim 13
5 in the '675 patent.

6 And we were previously talking about
7 different steps that are laid out in this method; so
8 I'm counting down through the steps. I'm looking at
9 step number 4 where it states:

10 [As Read] During detecting the
11 biometric information, acquiring second
12 information on a motion of the electronic
13 device, using at least the part of the at
14 least one first sensor.

15 Do you see that?

16 ATTORNEY TRAC: Brady, I think it might be
17 the fifth one down.

18 ATTORNEY NASH: Oh, sorry. Yeah; correct.
19 Fifth, yeah.

20 Yeah. So I'll repeat that -- repeat what
21 I'm saying.

22 BY ATTORNEY NASH:

23 Q. So I'm looking at the fifth step which
24 states:

25 [As Read] During detecting the

1 biometric information, acquiring second
2 information on a motion of the electronic
3 device, using at least the part of the at
4 least one first sensor.

5 Do you see that?

6 A. I see that.

7 Q. Do you agree that this step relates to
8 using the first sensor to measure the motion of the
9 electronic device while the second sensor
10 simultaneously detects biometric information?

11 ATTORNEY TRAC: Objection. Vague. Legal
12 conclusion.

13 THE WITNESS: I mean, that's what that
14 step says; right?

15 [As Read] During detecting the
16 biometric information.

17 That is using the second sensor; right?

18 [As Read] Acquiring second
19 information on the motion of the
20 electronic device using at least the part
21 of the at least one first sensor.

22 So it's using at least part of that first
23 sensor to acquire motion of the wearable electronic
24 device.

25 ///

1 BY ATTORNEY NASH:

2 Q. And then moving down to Step 6, it states:

3 [As Read] In response to identifying
4 that the motion of the electronic device
5 included in the second information is more
6 than a threshold motion, inactivating the
7 at least one second sensor.

8 Do you see that?

9 A. I see that.

10 Q. What is a threshold motion?

11 A. A threshold motion is a -- is a threshold
12 motion; right? For example, you set a level. You
13 can call that threshold, but that threshold is
14 related to motion; so it's called a threshold
15 motion.

16 Q. And in the context of claim 13, what is
17 the purpose of the threshold motion?

18 ATTORNEY TRAC: Objection. Vague. Legal
19 conclusion.

20 THE WITNESS: Right? That step, I
21 believe, is step number 6; right? Talks about, you
22 know:

23 [As Read] In response to identifying
24 that the motion of the electronic device
25 included in the second information is more

1 than a threshold motion, inactivating the
2 at least one second sensor.

3 So inactivating at least one second sensor
4 is an action -- right? -- in response to the second
5 motion which is detect by at least part of the first
6 sensor whether that motion is -- is -- is more than
7 a threshold motion.

8 BY ATTORNEY NASH:

9 Q. Okay.

10 So I'd like to now turn to column 19 of
11 the '675 patent. And I'm specifically looking at
12 lines 30 to 34, which is describing Figure 5B.

13 (Court reporter clarification.)

14 BY ATTORNEY NASH:

15 Q. And it states:

16 [As Read] Figure 5B is a view
17 illustrating an operation of measuring
18 biometric information by an electronic
19 device (e.g., the electronic device 101,
20 the processor 120, of the electronic
21 device 101, the electronic device 400, or
22 the processor 500), according to various
23 embodiments of the present disclosure.

24 Do you see that?

25 A. I see that.

1 Q. Do you agree that Figure 5B illustrates an
2 operation of measuring biometric information by an
3 electronic device?

4 A. Can you please say that again.

5 Q. Do you agree that Figure 5B illustrates an
6 operation of measuring biometric information by an
7 electronic device?

8 A. Yeah. I think that's what the document
9 says; right?

10 [As Read] Figure 5B is a view
11 illustrating an operation of measuring
12 biometric information by an electronic
13 device according to various embodiments of
14 the present disclosure.

15 So I'm just kind of reading from column 2
16 of the specification where it -- it -- it describes,
17 you know, what Figure 5B does.

18 Q. Okay.

19 THE COURT REPORTER: Counsel, apologies
20 for the interruption. May we take a brief break,
21 please?

22 ATTORNEY NASH: Yes.

23 THE VIDEOGRAPHER: We're going off the
24 record. The time now is 10:03 AM.

25 (A break was taken.)

1 THE VIDEOGRAPHER: We are back on the
2 record. The time is 10:12 AM. Please proceed.

3 ATTORNEY NASH: Dr. Young, I'm sharing
4 with you what I would like to have marked as
5 Exhibit 3.

6 (Exhibit 3 was marked for identification.)

7 BY ATTORNEY NASH:

8 Q. Dr. Young, do you recognize this document?

9 A. Yes, I do.

10 Q. Do you agree that this document is a
11 copy of U.S. Patent Number 10,642,359?

12 A. Yes, I do.

13 Q. Have you seen this document before?

14 A. Yes, I have.

15 ATTORNEY NASH: And, Mike, I've also got a
16 copy if that's helpful for you.

17 THE COURT REPORTER: Oh, sure. Thanks.

18 BY ATTORNEY NASH:

19 Q. Have you reviewed the prosecution history
20 for the '359 patent?

21 A. I skimmed through the prosecution --
22 prosecution history for this patent.

23 Q. Dr. Young, what is your understanding of
24 the term -- actually, strike that.

25 Dr. Young, what is a biological signal?

1 ATTORNEY TRAC: Objection. Vague.

2 THE WITNESS: A biological signal is a
3 signal related to biological information from a
4 human per se or from maybe an animal.

5 BY ATTORNEY NASH:

6 Q. And what do you mean when you say
7 "biological information"?

8 What does that mean?

9 A. Information related to the biological --
10 biological condition -- right? -- of -- of -- of --
11 of a human or of a live animal per se.

12 Q. And what is a biometric signal?

13 ATTORNEY TRAC: Objection. Vague.

14 THE WITNESS: A biometric signal is also a
15 signal related to, for example, character and --
16 characteristics of biological information.

17 BY ATTORNEY NASH:

18 Q. What types of characteristics?

19 A. Right.

20 If you look at, you know, for example,
21 Oura's, you know, position looking in the
22 dictionary -- right? -- it talks about, you know --

23 I do not remember word by word, but I
24 think your document shows, like, a retinal, voice
25 recognition, finger length, things like that.

1 Q. Besides claim 14 in the '359 patent, is
2 the term "biometric" used in the specification?

3 A. I don't recall that term was used in the
4 specification of the '359 patent.

5 Q. How does the term "biometric" operate
6 throughout the specification of the '359 patent?

7 A. I'm not sure if I -- I heard your
8 question, but I -- I don't fully understand.

9 What do you mean by how is -- how is --
10 how is operated throughout the '359 patent?

11 Q. Do you agree that, within the context of
12 the '359 patent, that a biological signal is a
13 signal that relates to muscle contraction or muscle
14 relaxation of a body part?

15 ATTORNEY TRAC: Objection. Vague.

16 THE WITNESS: I think the specification
17 use that as one of the examples.

18 ATTORNEY NASH: I'd like to have now
19 marked as Exhibit 4 this document that I'm handing
20 to you.

21 (Exhibit 4 was marked for identification.)

22 BY ATTORNEY NASH:

23 Q. Dr. Young, do you recognize this document?

24 A. Yes, I do.

25 Q. What is this document?

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENTS OURARING INC. AND OURA HEALTH OY'S RESPONSIVE CLAIM CONSTRUCTION BRIEF** was served upon the following as indicated below on May 18, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan
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